

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1375

By: Boles

AS INTRODUCED

An Act relating to nuclear energy; enacting the Oklahoma Nuclear Energy Feasibility Study Act of 2025; providing timeline for the Oklahoma Corporation Commission to engage an outside consulting firm to provide the service of conducting a technical and legal feasibility study on promoting nuclear energy generation; providing required requisites for the consulting firm; providing scope of the feasibility study; requiring cooperation by certain groups by providing information relevant to the feasibility study; providing timeline for delivery of the report of feasibility study; providing that report shall be delivered to certain parties; providing that the Oklahoma Corporation Commission is authorized to retain, negotiate with, and expend a certain amount necessary to provide compensation to the consulting firm; providing for noncodification; providing for codification; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Oklahoma Nuclear Energy Feasibility Study Act of 2025".

1 SECTION 2. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 803.1 of Title 17, unless there
3 is created a duplication in numbering, reads as follows:

4 A. Within thirty (30) days after the passage and approval of
5 this act, the Oklahoma Corporation Commission shall engage an
6 outside consulting firm to provide the service of conducting a
7 technical and legal feasibility study on promoting nuclear energy
8 generation in this state.

9 B. The consulting firm shall:

10 1. Be well-established in the nuclear industry and have been in
11 existence for more than thirty-five (35) years;

12 2. Have (or have had within the past ten (10) years) at least
13 ninety percent (90%) of the existing United States nuclear operators
14 as its customers;

15 3. Have had nuclear licensing as fifty percent (50%) or more of
16 its business by revenue for the past twenty (20) years; and

17 4. Be staffed with a licensed attorney who has experience in
18 assisting entities in submitting and obtaining regulatory
19 permissions for new reactor designs and licenses under 10 C.F.R.

20 Part 52. In addition to the foregoing requirements, if competent to
21 perform such services, preference shall be given to consulting firms
22 that have at least forty percent (40%) of their assets owned by one
23 or more military veterans with nuclear operating experience from
24 their time in military service and are managed in their day-to-day

1 operations by military veterans as defined by 38 U.S.C., Section
2 101(2) .

3 C. The feasibility study shall consider the following:

4 1. The advantages and disadvantages of nuclear energy
5 generation in this state, including, but not limited to, the
6 economic and environmental impact;

7 2. Ways to maximize the use of workers who reside in this state
8 and products made in this state in the construction of nuclear
9 energy generation facilities;

10 3. Evaluations, conclusions, and recommendations on the
11 following:

12 a. design characteristics and evaluation, including
13 specific recommendations of optimal designs based on
14 site characteristics and possible industrial uses,

15 b. environmental and ecological impacts,

16 c. land and siting criteria, including specific areas
17 that are best suited for new nuclear generation based
18 on the land and siting criteria,

19 d. safety criteria,

20 e. engineering and cost-related criteria,

21 f. small modular nuclear reactor and microreactor
22 capability;

23 4. Socioeconomic assessment and impact analysis, including, but
24 not limited to, the following:

- a. workforce education, training, and development,
- b. local and state tax base,
- c. supply chains,
- d. permanent and temporary job creation;

5. The timeline for development, including areas of potential acceleration or efficiencies and leveraging existing facilities within this state;

6. Additional efficiencies and other benefits that may be gained by coordinating with other advanced, clean energy technologies, including, but not limited to, hydrogen, direct air capture of carbon dioxide, and energy storage;

7. Literature review of studies that have assessed the potential impact of nuclear energy generation in supporting an energy transition;

8. Assessment and recommendation of current and future policies that may be needed to support or accelerate the adoption of nuclear energy generation or may improve its cost-effectiveness, including a survey of federal programs and other methods that could financially assist a nuclear project in the state.

D. The Oklahoma Corporation Commission, state public utilities, cooperatives, and municipally owned utilities shall cooperate in providing information relevant to the feasibility study, as needed, subject to notifications to stakeholders and reasonable safeguards to protect confidential information from being made public.

1 E. Not later than nine (9) months after the effective date of
2 this act, the Oklahoma Corporation Commission shall deliver a
3 written report on the feasibility study to the Governor of the State
4 of Oklahoma, and the President Pro Tempore of the Oklahoma State
5 Senate and the Speaker of the Oklahoma House of Representatives who
6 shall forward the report to the appropriate committees.

7 SECTION 3. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 803.2 of Title 17, unless there
9 is created a duplication in numbering, reads as follows:

10 The Oklahoma Corporation Commission is authorized to retain,
11 negotiate with, and expend an amount not to exceed Three Hundred
12 Seventy-five Thousand Dollars (\$375,000.00) or so much thereof as
13 may be necessary to provide compensation to the consulting firm as
14 required by this act.

15 SECTION 4. It being immediately necessary for the preservation
16 of the public peace, health or safety, an emergency is hereby
17 declared to exist, by reason whereof this act shall take effect and
18 be in full force from and after its passage and approval.

19
20 60-1-10149 JL 01/04/25
21
22
23
24